

9 & 10 ELIZ. 2.

No. 2

A MEASURE passed by the National Assembly of the Church of England

To provide for the annotation of parochial registers of baptisms in cases of persons legitimated after baptism, and for the issue of short certificates of baptism in certain cases, and for purposes connected with the matters aforesaid. [3rd August, 1961]

1.—(1) A custodian of registers of baptisms maintained under section three of the Parochial Registers Act, 1812, shall, without any fee, make the prescribed annotation in any such register in his custody against any entry shewing the baptism of a person who has been legitimated since he was baptised, if the following conditions are satisfied:—

Annotation of entries.
52 Geo. 3.
c. 146.

- (a) there is produced to the custodian by an interested person a certified copy of an entry in a register, which is maintained under the Births and Deaths Registration Act, 1953, or which is in the custody of the Registrar General, being an entry in which the birth of the baptised person is re-registered as that of a legitimated person; and
- (b) the interested person identifies to the custodian, in the registers of baptism in his custody, the entry shewing baptism which is alleged to require annotation; and
- (c) the custodian is satisfied that the said certified copy relates to the birth of the person whose baptism is recorded in the entry so identified to him:

Provided that nothing in this section shall require any custodian to allow any search to be made in any register of baptisms without payment of such fees as may be lawfully demanded by him.

(2) In this section “prescribed annotation” means the form of words set forth in Part I of the Schedule to this Measure or a form of words substantially to the like effect.

(3) Any certificate of the baptism of any person (other than a short certificate of baptism given under the succeeding section) given in respect of an entry in a register of baptisms which has been annotated in accordance with the provisions of this section shall set out the annotation which appears on the register in full.

Short
certificates
of baptism.

2.—(1) A custodian of registers of baptisms shall, in any case in which before the passing of this Measure he would have given a certificate of the baptism of any person compiled from the registers in his custody, give, at the request of the person paying the fee for the certificate, a short certificate of baptism in the form set out in Part II of the Schedule to this Measure, or in a form substantially to the like effect, and shall complete the certificate with the particulars set forth in the said Part of the Schedule.

(2) A short certificate of baptism given under this section shall be valid for all purposes for which a certificate of the baptism of any person compiled from a register of baptisms would have been valid before the passing of this Measure and, without derogation from the generality of the foregoing, all such short certificates which purport to be signed by the custodian of the register of baptisms from which the certificate is compiled shall be received as evidence of the baptism to which the certificate relates, without any further or other proof of such entry.

(3) The fee payable to the custodian giving a short certificate of baptism under this section shall be such sum as may be fixed by such persons or authorities as may from time to time have power to fix fees for searches of registers of baptisms, and until such fee is fixed a sum of one shilling and sixpence.

Interpretation.

3. In this Measure:—

the expression “custodian” means the rector, vicar, curate or officiating minister of any parish or chapelry who by virtue of section five of the Parochial Registers Act, 1812, has custody of registers of baptisms and the chief officer of any diocesan record office and any diocesan registrar who, by virtue of the Parochial Registers and Records Measure, 1929, has the custody of such registers;

the expression “interested person” means the legitimated person in question, or either of his parents, or any other person who satisfies the custodian that he has a reasonable personal or other interest in the matter.

19 & 20 Geo. 5.
No. 1.

Short title.

4. This Measure may be cited as the Baptismal Registers Measure, 1961.

SCHEDULE

PART I

Section 1.

Certificate showing re-registration of birth,
 produced to me this day of 19 ,
 showing father's name as A. B.

(signed)

Officiating Minister
 Officer in charge of
 diocesan record office
 Diocesan Registrar

} or as the case may be.

PART II

Section 2.

CERTIFICATE OF BAPTISM

I hereby certify from the records of the parish of (1)
 that (2)
 was baptised according to the rites and ceremonies of the Church of
 England on the day of in the year of
 Our Lord 19 .

(signed)

Rector, vicar, curate, minister of

or

Chief Officer of the diocesan record
 office of the Diocese of

or

Registrar of the Diocese of

The particulars to be inserted in the numbered spaces of the above
 form are:—

- (1) The name of the parish or other place of which the register of baptisms in question is or was the register. If the place is not a parish the word parish is to be struck out and other appropriate words are to be substituted therefor.
- (2) The Christian names of the baptised person as recorded in the entry followed by the surname of his father as recorded in the entry or if more than one such surname is so recorded or if his mother appears from the entry to have borne a different surname at the date of his baptism, such one of those surnames of his father or mother as the applicant may request. If an annotation has been made against the entry in the register, by virtue of section one of this Measure the surname is to be that recorded in the annotation. If there is no such annotation and no entry appears in the column for the father's name in the register the surname to be inserted is the surname of the baptised person's mother appearing from the entry to have been used by her at the date of baptism or, if more than one such surname is so recorded, such one of them as the applicant may request.